

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Carayannis	Team: Squad #16	CCRB Case #: 201507899	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/16/2015 11:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/16/2017	Precinct: 71		
Date/Time CV Reported Thu, 09/17/2015 4:34 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/17/2015 4:34 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Justin Smith	06812	947497	071 PCT
2. POM Paul Rivera	29562	937921	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Justin Smith	Abuse: PO Justin Smith threatened § 87(2)(b) with the use of force.	A . Unsubstantiated
B . POM Justin Smith	Abuse: PO Justin Smith entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Paul Rivera	Abuse: PO Paul Rivera entered § 87(2)(b) in Brooklyn.	C . Exonerated
D . POM Justin Smith	Abuse: PO Justin Smith damaged § 87(2)(b) s property.	D . Unfounded
E . POM Justin Smith	Abuse: PO Justin Smith searched § 87(2)(b) in Brooklyn.	E . Exonerated

Case Summary

On September 16, 2015, at approximately 11:00 a.m., § 87(2)(b) had an argument with his girlfriend, § 87(2)(b) at his apartment located at § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) were in the lobby of the building when PO Justin Smith and PO Paul Rivera, both from the 71st Precinct, arrived. § 87(2)(b) recognized PO Smith from a previous arrest and lawsuit. § 87(2)(b) ran into his apartment and attempted to shut the door. PO Smith was on the other side of the door pushing on it preventing § 87(2)(b) from closing it. PO Smith allegedly stated, “I am going to fuck you up” (**Allegation A**). § 87(2)(b) ran through his apartment and through § 87(2)(b) s (his grandmother) room. PO Smith followed § 87(2)(b) into the house (**Allegation B**), followed by PO Smith (**Allegation C**). § 87(2)(b) jumped out the window and hid in the bushes of a neighbor’s yard. § 87(2)(b) went to the home of § 87(2)(b), a friend, and he received a phone call from § 87(2)(b) stating PO Smith was searching his room (**Allegation E**). § 87(2)(b) allegedly sent § 87(2)(b) to the apartment to see what was going on. § 87(2)(b) told him that PO Smith was removing papers from his room. After three days, § 87(2)(b) returned to his room and discovered the door to his room had been broken (**Allegation D**).

There is a video in this case, taken by § 87(2)(b) s sister (whose name he did not know how to spell) days after the incident depicting the state of § 87(2)(b) s room (see video below).



2015-10-26_13-59-09.mp4

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation. On October 26, 2015, a FOIL request for a Notice of Claim was sent to the New York City Office of the Comptroller and to date this request has not been fulfilled. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (Board Review 02).
- PO Smith has been a member of service for seven years and has no substantiated CCRB allegations against him. § 87(2)(g)

Findings and Recommendations

Allegation A—Abuse of Authority: PO Justin Smith threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that while he and PO Smith were pushing the door back and forth between each other, that PO Smith said, “I am going to fuck you up.” § 87(2)(b) friend, § 87(2)(b) also stated that he overheard PO Smith say, “I am going to kill you.” § 87(2)(b) did not allege this. § 87(2)(b) was uncooperative with the investigation.

PO Smith denied saying this or any similar phrase. PO Rivera did not hear PO Smith say this phrase.

§ 87(2)(g)
It is therefore recommended that **Allegation A** be **unsubstantiated**.

Allegation B—Abuse of Authority: PO Justin Smith entered § 87(2)(b) in Brooklyn.

Allegation C—Abuse of Authority: PO Paul Rivera entered § 87(2)(b), in Brooklyn.

It is undisputed that § 87(2)(b) and § 87(2)(b) were having an argument prior to PO Smith and PO Rivera’s arrival, and that § 87(2)(b) ran inside his apartment and attempted to shut the door when the officers approached him. It is undisputed that PO Smith pushed against the door and then entered the apartment pursuing § 87(2)(b) and that § 87(2)(b) ultimately fled the apartment through a window. § 87(2)(g)

§ 87(2)(b) stated that when the officers entered the building, the argument between himself and § 87(2)(b) was over. § 87(2)(b) did not say anything to the officers and § 87(2)(b) fled because he was afraid of retaliation for a previous lawsuit he had settled with the city which involved PO Smith. § 87(2)(b) was not cooperative with the investigation and § 87(2)(b) and § 87(2)(b) were not present for this portion of the incident.

PO Smith stated that upon entering, § 87(2)(b) stated that § 87(2)(b) had hit her. PO Smith learned later from § 87(2)(b) that § 87(2)(b) had taken her cellphone away when she tried to call 911. When § 87(2)(b) got her cellphone back, she texted a friend to call 911. § 87(2)(b) took her cellphone from her again. PO Smith chased § 87(2)(b) to apprehend him for the domestic dispute. Afterwards, PO Smith generated a Criminal Complaint Report (Board Review 06) and a Domestic Incident Report (DIR) (Board Review 05). PO Smith reported on the DIR that § 87(2)(b) complained that § 87(2)(b) hit her. § 87(2)(b)s written statement on the DIR stated that § 87(2)(b) took her cellphone and she did not complaint that she was hit. § 87(2)(b)

PO Rivera stated that upon entering, § 87(2)(b) stated solely that § 87(2)(b) had taken her cellphone. § 87(2)(b) was told to sit on the steps. § 87(2)(b) ran into his apartment and PO Smith followed.

The Event Details (Board Review 03) show that a third party called 911 from Staten Island to complain that another female stated that her boyfriend was beating on her.

§ 87(2)(g)
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The police may effectuate a warrantless arrest inside a person's home if exigent circumstances exist. The following five factors are considered when determining whether exigent circumstances exist: "(1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause . . . to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry." People v. McBride, 14 N.Y.3d 440, 446 (2010) (Board Review 04).

§ 87(2)(g)

It is therefore recommended that **Allegation B** and **Allegation C** be **exonerated**.

Allegation D—Abuse of Authority: PO Justin Smith damaged § 87(2)(b)'s property.

§ 87(2)(b) stated that he ran through § 87(2)(b)'s room and jumped out of her window. Upon returning to the apartment three days later, § 87(2)(b) observed that the door to his bedroom was broken such that it did not have a door knob. (For a photograph of alleged damage, see Board Review 09).

§ 87(2)(b) stated that she was in her room when § 87(2)(b) entered the apartment. She did not know where § 87(2)(b) went in the apartment, but somehow he exited. § 87(2)(b) observed PO Smith in § 87(2)(b)'s bedroom for a very short period. § 87(2)(b) did not claim that § 87(2)(b)'s bedroom door was broken.

§ 87(2)(b) stated that he was on the third floor when the incident occurred, but that he came to § 87(2)(b)'s apartment as PO Smith was leaving. § 87(2)(b) observed the room in disarray and he observed objects missing, but he did not notice any damage to § 87(2)(b)'s bedroom door.

PO Smith stated that he pursued § 87(2)(b) into § 87(2)(b)'s bedroom. § 87(2)(b) opened the door to his bedroom and did not close it. § 87(2)(b) jumped out of his bedroom window. PO Smith did not enter any other rooms and he did not have to breach or open the door to § 87(2)(b)'s bedroom. PO Smith did not see any damage to § 87(2)(b)'s door.

PO Rivera stated that § 87(2)(b) ran through his own bedroom and that no door was breached or damaged.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be **unfounded**.

Allegation E—Abuse of Authority: PO Justin Smith searched § 87(2)(b)

§ 87(2)(b), in Brooklyn.

§ 87(2)(b) was not in his apartment at the time of the alleged search. § 87(2)(b) stated that he received a phone call from § 87(2)(b) stating that PO Smith was searching his room and that § 87(2)(b) told him the same thing. When § 87(2)(b) returned, three days later, his room was in disarray. His unidentified sister, who was not present for the incident, took a video of the alleged results of the search.

§ 87(2)(b) stated that PO Smith was inside § 87(2)(b)'s bedroom for a short time and that he was picking up papers as though he knew where they were. PO Smith left after picking up the papers.

§ 87(2)(b) stated that he observed PO Smith exiting the apartment with papers of § 87(2)(b)'s. § 87(2)(b) went to § 87(2)(b)'s bedroom and observed that it was in disarray.

PO Smith stated that when he chased § 87(2)(b) into his bedroom, he observed a several identification cards, checks, and money orders on § 87(2)(b)'s dresser and on his bed in plain view. PO Smith picked up all these items and vouchered them as he believed they were fraudulent. He believed this because the identification cards and checks were in people's names who were not § 87(2)(b). PO Smith was in the bedroom for only a few minutes.

PO Rivera stated that PO Smith told him that he found forged documents in § 87(2)(b)'s bedroom. PO Rivera did not see these and PO Rivera did not enter § 87(2)(b)'s bedroom.

PO Smith vouchered 12 identification cards from various different jurisdictions all in different names, six credit cards with different names, one social security card, and checks (Board Review 10).

§ 87(2)(g)
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It is therefore recommended that **Allegation E** be **exonerated**.

Squad: 16

Investigator: _____	<u>Lily Carayannis</u>	<u>October 27, 2015</u>
Signature	Print	Date

Pod Leader: _____	_____	_____
Title/Signature	Print	Date

Attorney: _____	_____	_____
Title/Signature	Print	Date